



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-24-96 | Ridgeview Apartments – Phase 2 – Annexation
Date: August 12, 2024

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 8/12/2024
- Public Services Committee 8/20/2024
- Second reading 8/26/2024
- Public Services Committee 9/4/2024
- Third and final reading 9/9/2024

Related Items:

- PUDC-24-96: Assigned Zoning
- PUDC-24-97: Zoning Map Amendment

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED WEST OF CONVERSE AVENUE AND NORTH OF DELL RANGE BOULEVARD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

(a) Kipling Sheppard and Jarom Johnson, owners of:

A tract of land situate in a portion of the East Half of Section 20, T14N, R66W, 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Beginning at the Northwest corner of that parcel described in Book 2812, Page 889, from which the East Quarter corner of Section 20 bears S81° 02' 23"E, a distance of 1475.90 feet; thence along the West lines of said Book 2812, Page 889 for the following 2 courses; thence S23° 01' 39"W, a distance of 80.00 feet; thence S00° 00' 00"E, a distance of 934.57 feet; thence S90° 00' 00"W, a distance of 101.73 feet; thence N00° 00' 00" E, a distance of 977.81 feet; thence N23° 01' 39"E, a distance of 80.00 feet; thence S66° 58' 21"E, a distance of 110.54 feet to the Point of Beginning. Containing 2.44 acres, more or less.

A tract of land situate in a portion of the East Half of Section 20, T14N, R66W, 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Beginning at the Northwest corner of that parcel described in Book 2494, Page 445, from which the East Quarter corner of Section 20 bears S84° 01' 08" E, a distance of 1223.73 feet; thence along the West and South lines of said Book 2494, Page 445 for the following 3 courses; thence S23° 01' 39" W, a distance of 80.00 feet; thence S00° 00' 00" E, a distance of 709.04 feet; thence N90° 00' 00" E, a distance of 48.00 feet to the West line of Scenic Development, 4th Filing; thence S00° 00' 00" W, along said West line, a distance of 123.17 feet; thence S90° 00' 00" W, a distance of 288.82 feet; thence N00° 00' 00" E, a distance of 934.57 feet; thence N23° 01' 39" E, a distance of 80.00 feet; thence S66° 58' 21" E, a distance of 261.67 feet to the Point of Beginning. Containing 5.50 acres, more or less.

A Parcel Of Land Situated In A Portion Of Section 20, Township 14 North, Range 66 West Of The Sixth Principal Meridian, Said Parcel Being Along The West Boundary Of The 'Scenic Development Third Filing', A Replat Of Lots 1-3, Block 1 Of Scenic Development 2nd Filing, Being More Particularly Described As Follows:

Commencing At A Point Where The Southwest Right Of Way Of Converse Avenue Intersects The West Boundary Of 'Century West Fifth Filing', Said Point Being Monumented By A Found Aluminum Cap P.L.S. 2927, And Running Thence, North 54°59'22" West, A Distance Of 1428.78 Feet To A Point On The North Right Of Way Line Of East Carlson Street Monumented By A 1-1/2" Aluminum Cap Stamped Avi 12045, And The Point Of Beginning For This Description; Thence, Along The Westerly Boundary Of Said 'Scenic Development Third Filing', The Following (2) Courses: (1) Thence S23°01'39"W A Distance Of 80.00 Feet; (2) Thence South A Distance Of 688.64 Feet; Thence West A Distance Of 48.00 Feet; Thence North A Distance Of 709.04 Feet; Thence N23°01'39"E A Distance Of 80.00 Feet; Thence S66°58'21"E A Distance Of 52.16 Feet To The Point Of Beginning. Said Parcel Contains 0.866 Acres, more or less.

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof;

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffrey B. Jones, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 5910;
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne;
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne;
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished;
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned A-1 Agricultural and Rural Residential by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to

the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

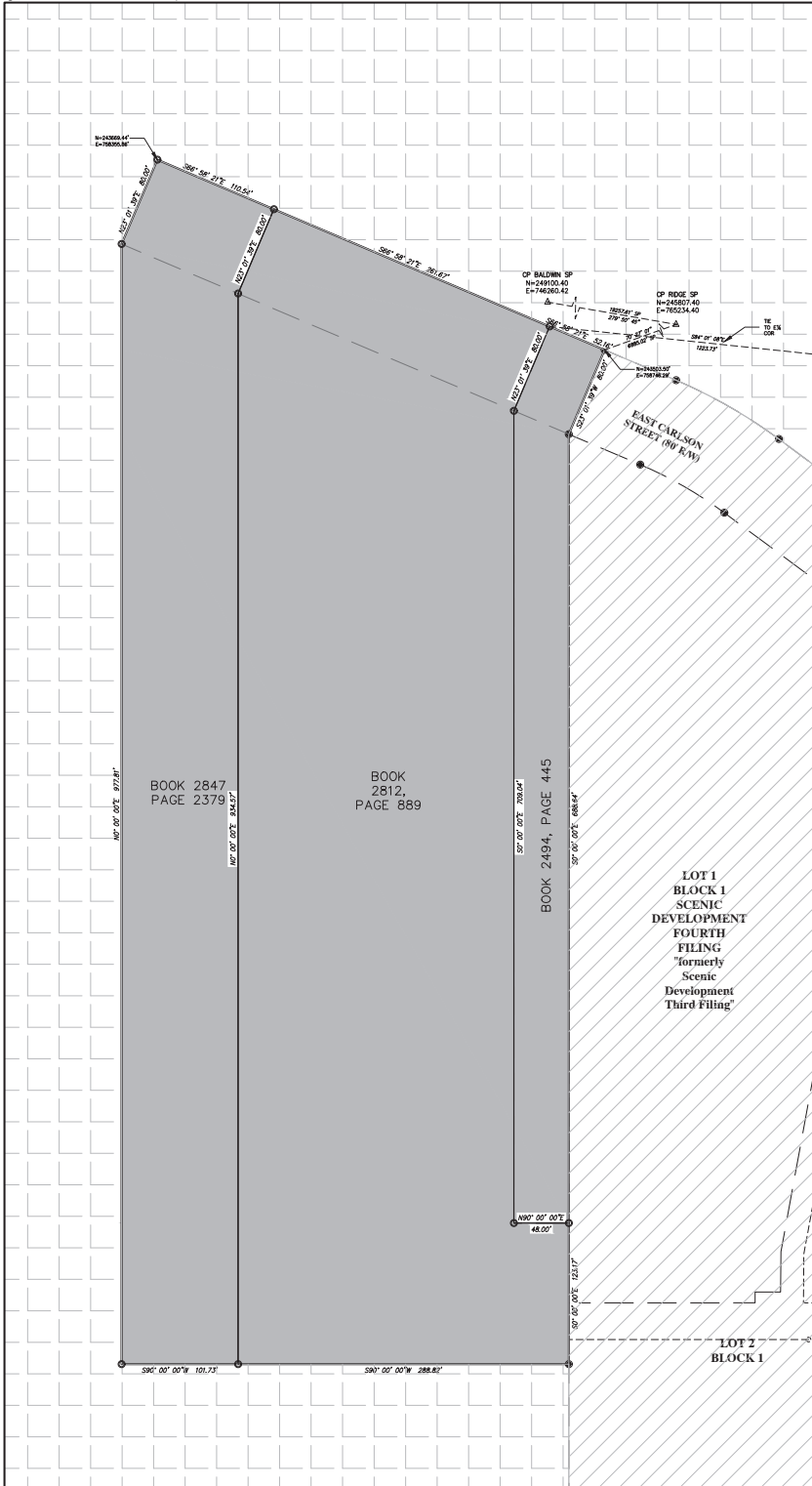
PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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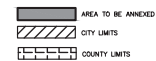
ANNEXATION DESCRIPTION

A PARCEL OF LAND SITUATED IN A PORTION OF SECTION 20, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE SIXTH PRINCIPAL MERIDIAN, SAID PARCEL BEING ALONG THE WEST BOUNDARY OF THE "SCENIC DEVELOPMENT THIRD FILING", A REPLAT OF LOTS 1-3, BLOCK 1 OF SCENIC DEVELOPMENT 2ND FILING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT A POINT WHERE THE SOUTHWEST RIGHT OF WAY OF CONVERSE AVENUE INTERSECTS THE WEST BOUNDARY OF "CENTURY WEST FIFTH FILING", SAID POINT BEING MONUMENTED BY A FOUND ALUMINUM CAP P.L.S. 2927, AND RUNNING THENCE, NORTH 54°59'22" WEST, A DISTANCE OF 1428.78 FEET TO A POINT ON THE NORTH RIGHT OF WAY LINE OF EAST CARLSON STREET MONUMENTED BY A 1-1/2" ALUMINUM CAP STAMPED AV 12045, AND THE POINT OF BEGINNING FOR THIS DESCRIPTION; THENCE, ALONG THE WESTERLY BOUNDARY OF SAID "SCENIC DEVELOPMENT THIRD FILING", THE FOLLOWING (2) COURSES: (1) THENCE S23°01'39"W A DISTANCE OF 80.00 FEET; (2) THENCE SOUTH A DISTANCE OF 688.64 FEET; THENCE WEST A DISTANCE OF 48.00 FEET; THENCE NORTH A DISTANCE OF 709.04 FEET; THENCE N23°01'39"E A DISTANCE OF 80.00 FEET; THENCE S66°58'21"E A DISTANCE OF 52.16 FEET TO THE POINT OF BEGINNING.

SAID PARCEL CONTAINS 0.866 ACRES, MORE OR LESS.

LEGEND



NOTES

1. BASIS OF BEARINGS:
CITY OF CHEYENNE CONTROL NETWORK, CP RIDGE AND EAST.
STATE PLANE VALUES SHOWN AS "SP"

APPROVALS

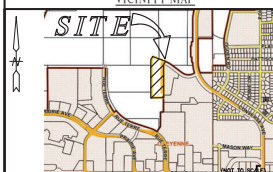
Approved by the City Council of the City of Cheyenne, Wyoming,
this ____ day of _____, 2023.

Mayer City Clerk

ANNEXATION AREA

TOTAL AREA: 8.80 ACRES
ABUTTING ANNEXATION AND RATIO TO TOTAL PERIMETER - 33%

VICINITY MAP



ANNEXATION EXHIBIT FOR

A PORTION OF THE EAST HALF OF SECTION 20, T14N, R66W, 6th P.M. LARAMIE COUNTY, WYOMING.

PREPARED June, 2024



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS

1106 WEST 18th ST. CHEYENNE, WY. 82001 • (307) 634-7573
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 323-9788
www.steilsurvey.com • info@steilsurvey.com



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(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY

AUGUST 12, 2024

STAFF REPORT

FILE: PUDC-24-96: Ridge View Apartments Phase 2 - Annexation

REQUEST: An annexation of 8.80 acres of land

LOCATION: West of Converse Avenue and North of Dell Range Boulevard.

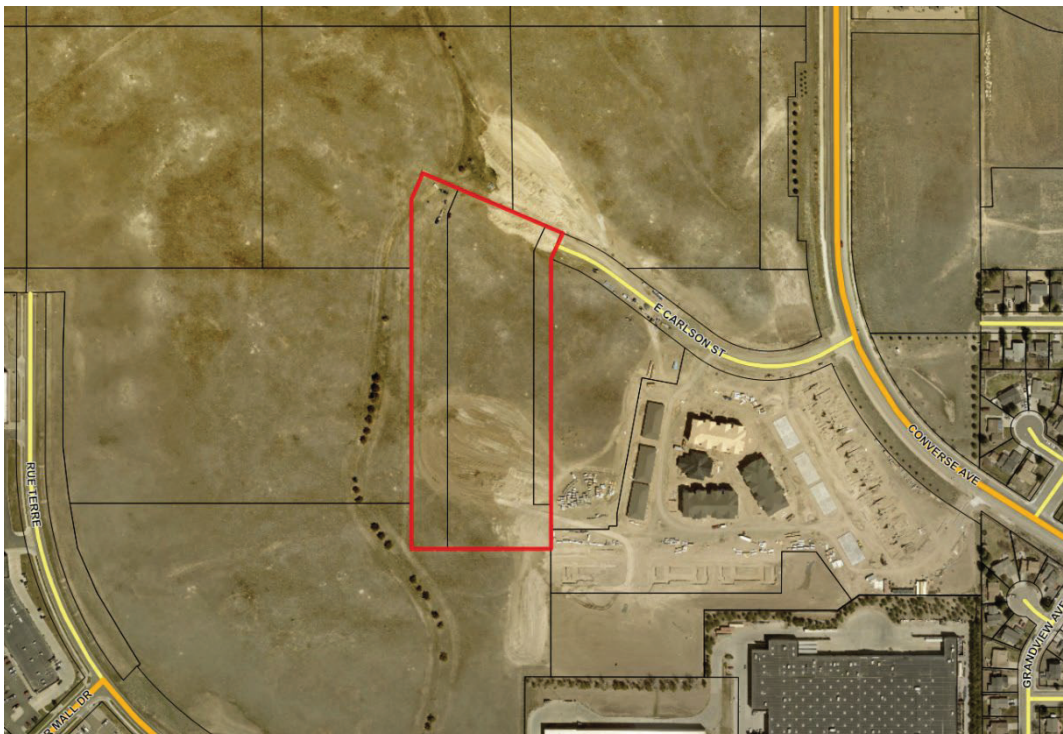
APPLICANT: Kelly Hafner

AGENT: Kelly Hafner

OWNERS: Kipling Sheppard and WPP Thomas Ranch LLC

PURPOSE: For multifamily development within City Limits.

PREPARED BY: Connor White, Planner II



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting annexing 8.80 acres of land to allow future development within City Limits. The land is currently vacant. The annexed area will be assigned a City zone based on the underlying County zone. The applicant has requested to rezone the property to NR-3 Neighborhood Residential – High Density from the City assigned zone.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by an assigned City zone of AG Agricultural.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Commercial / Urban Residential	AG Agricultural (once annexed)	Vacant / Agriculture
North	Urban Residential	County A-1	Vacant / Agriculture
South	Mixed-use Commercial	County A-1	Vacant / Agriculture
East	Mixed-use Commercial / Urban Residential	NR-3 Neighborhood Residential Hight-density	Multifamily
West	Mixed-use Commercial / Urban Residential	County A-1	Vacant / Agriculture

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]

The annexation of this property will increase the health, safety, and welfare of the future occupants. By being in City limits, the property will receive access to City Fire and Police and sanitation services. The property, if occupied, will also be required to be connected to City water and sanitary sewer instead of having wells and septic systems.

The application **complies** with this review criterion.

2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]

This property, once developed, will constitute a natural, geographic, economic, and social part of the city. The property is adjacent to the City to the east. The contiguity to the City and the proximity to surrounding urban-style development makes the parcel a natural geographic part of the City. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]**

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. Utilities exist in the area and will be expanded into the proposed area as it develops.

The application **complies** with this review criterion.

- 4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]**

The area proposed for annexation is about 33% contiguous, along the eastern edge.

The application **complies** with this review criterion.

- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]**

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]**

A certified mailing was made to the landowners and public utilities on July 9, 2024. The public hearing for this annexation is scheduled for August 12, 2024. Twenty (20) business days (on the City's calendar) prior to the announced public hearing is July 15, 2024. The earliest confirmation of delivery was dated July 10, 2024.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with urban residential uses. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits. The area is within the Urban Service Boundary.

STAFF REVIEW:

Through the review process, no comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

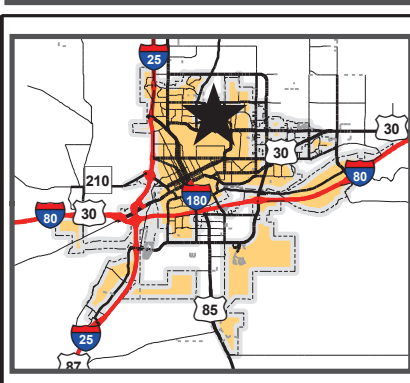
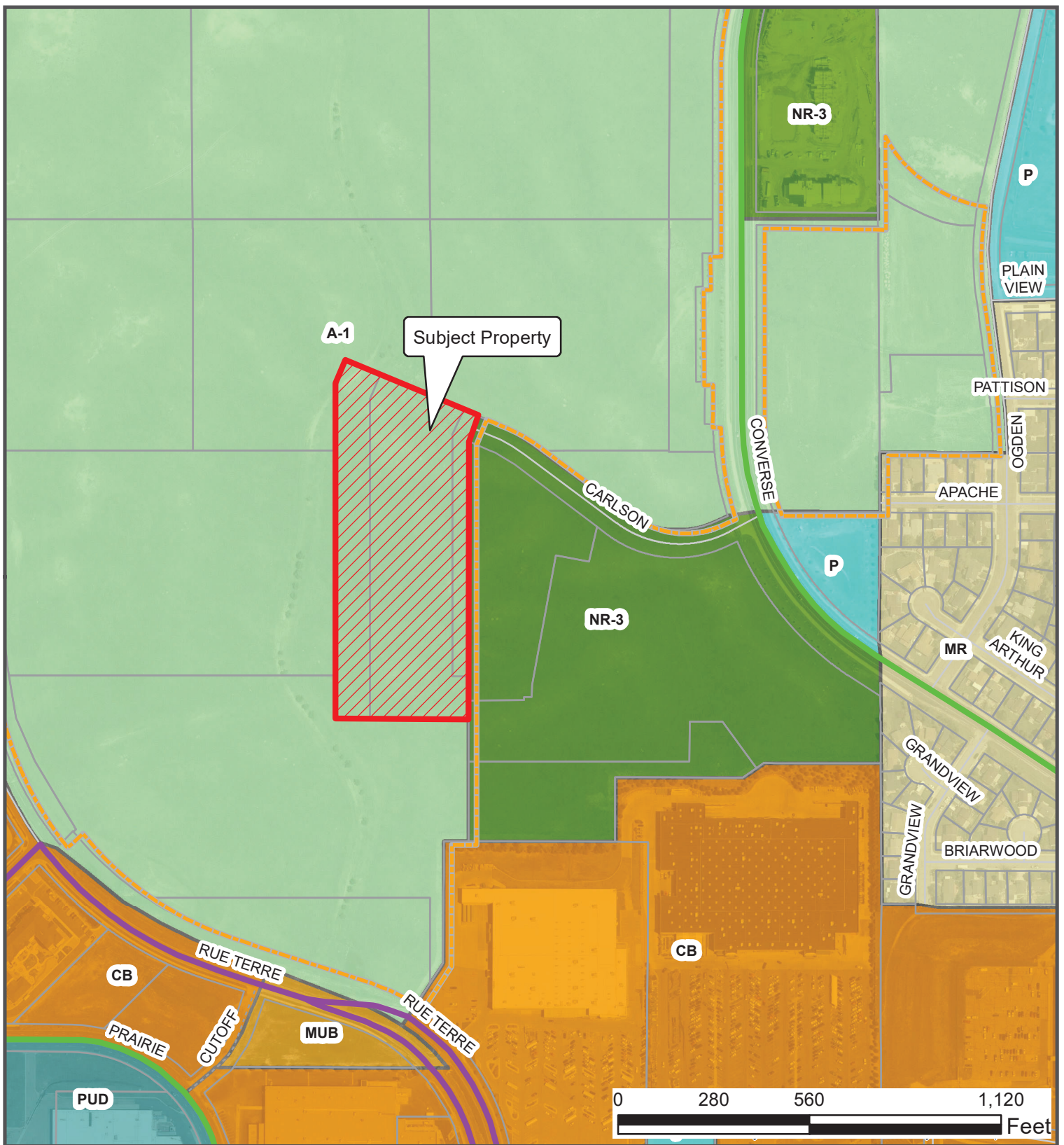
The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and most services typically available to urban areas are available to be extended to this property.

STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Submitted Application
4. Applicant-submitted annexation map

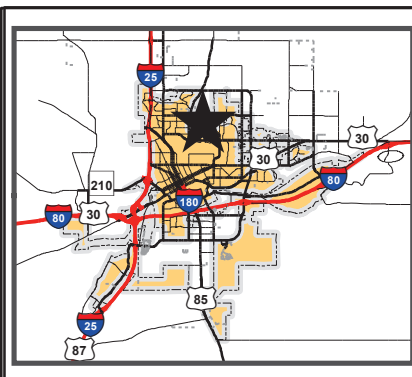
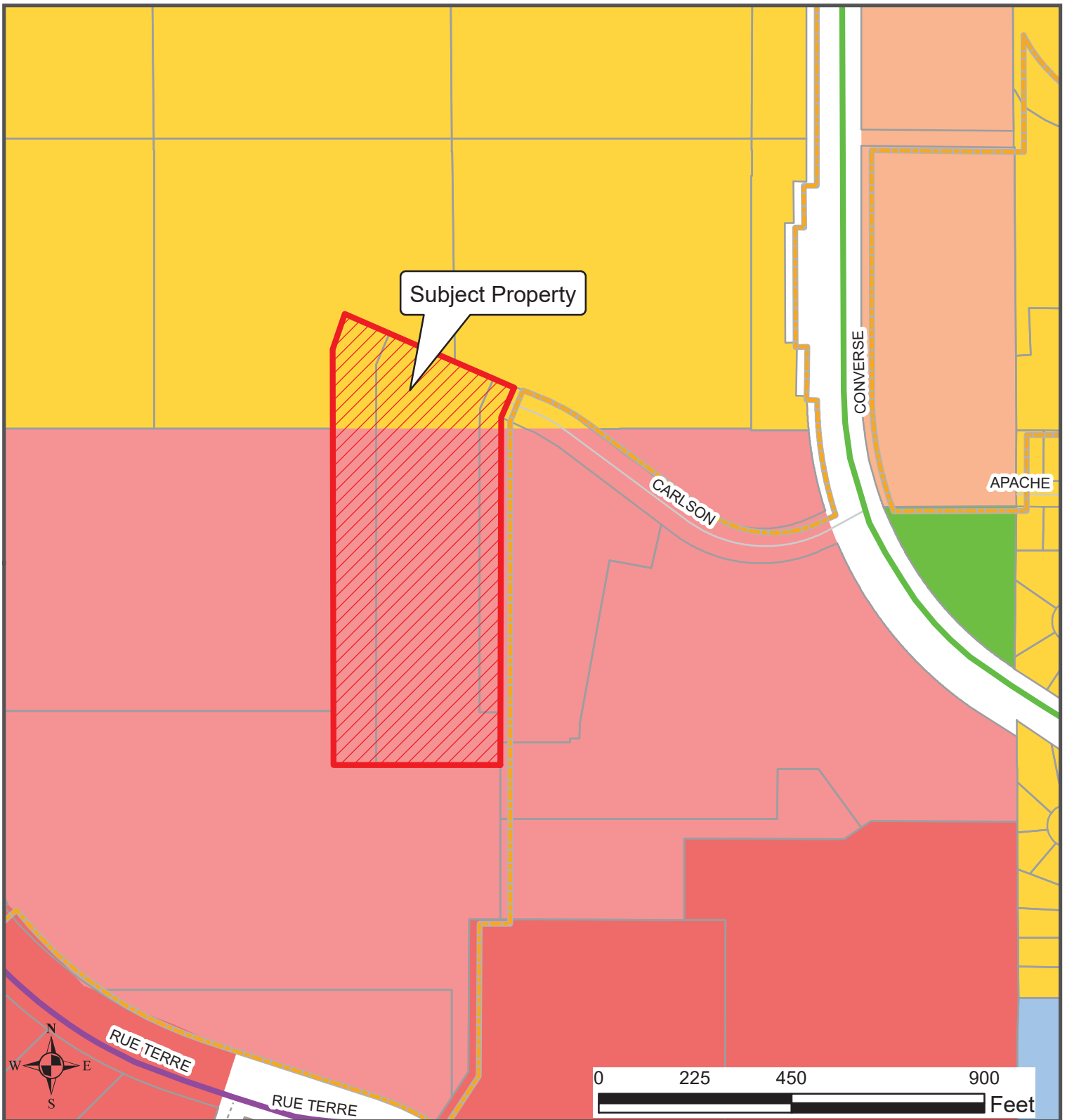


Attachment 1: Zoning Map PUDC-24-96

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-24-96

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



Cheyenne, WY

6/11/2024

PUDC-24-96**Annexation**

Status: Active

Submitted On: 6/10/2024

Pidn #: 14662010004200
14662010004400
14662040001600

Primary Location

0 E CARLSON ST
Cheyenne, WY 82009

Owner

SCENIC AT CEDAR SPRINGS
LLC
14572 S 790 W STE A100
BLUFFDALE, UT 840652390

Applicant

 Kelly Hafner
 307-760-1776 ext. ____
kelly.hafner@civilworxeng.com
 1807 Capitol Avenue Suite
108
Cheyenne, WY 82001

Application Information

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

Please Note: Annexation applications may **not be withdrawn** (Wyoming State Statute 15-1-403 b). If mylars are not provided in an attempt to 'withdraw' the application, the City will hire a surveyor to produce mylars and invoice the applicant for the work preformed.

The property owner is aware this application may not be withdrawn.*



I understand final stamped and signed mylars are required prior to final Governing Body approval.*

**Project Name*** 

Ridgeview Apartments Phase 2

Annexation Type*

Landowner Petition

Pursuant to UDC 2.4.2 and 2.2.8, the City zone assigned will be the standard City zone most closely matching the current County zone. If the assigned zone is not the desired zone, please also apply for a zoning map amendment. The anticipated assigned zoning based on the current County and City zoning requirements can be found on a policy document here.

Annexation Review Criteria

The following review criteria are found in Wyoming State Statute regarding annexation. Please acknowledge the proposed annexation meets each review criterion by checking the box.

An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town (15-1-402 a i)*



The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town (15-1-402 a ii)*



The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed (15-1-402 a iii)*



The area sought to be annexed is contiguous with  or adjacent to the annexing city or town (15-1-402 a iv)*



Percent Contiguous*

33

No tract of land or any part thereof, whether consisting of one (1) parcel or two (2) or more contiguous parcels owned by one (1) landowner or owned jointly by two (2) or more landowners as cotenants, which comprises forty (40) acres or more and which together with the buildings or improvements situated thereon has an assessed valuation in excess of forty thousand dollars (\$40,000.00) as of the current assessment for property tax purposes, may be annexed without the written consent of the landowner or landowners, unless the tract of land is situated entirely within the boundaries of the annexing city or town (15-1-412)*



Zoning Assignment Review Criteria

The review criterion for a zoning assignment:

"1. The proposed zoning assignment is the most analogous City zone to the current zone when taking into consideration allowed uses. Zoning for standard county zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case-by-case basis." (UDC 2.2.8.d.1)

If the assigned zone is not the desired zone, please submit for a separate zoning map amendment. Check the box to acknowledge this requirement.*



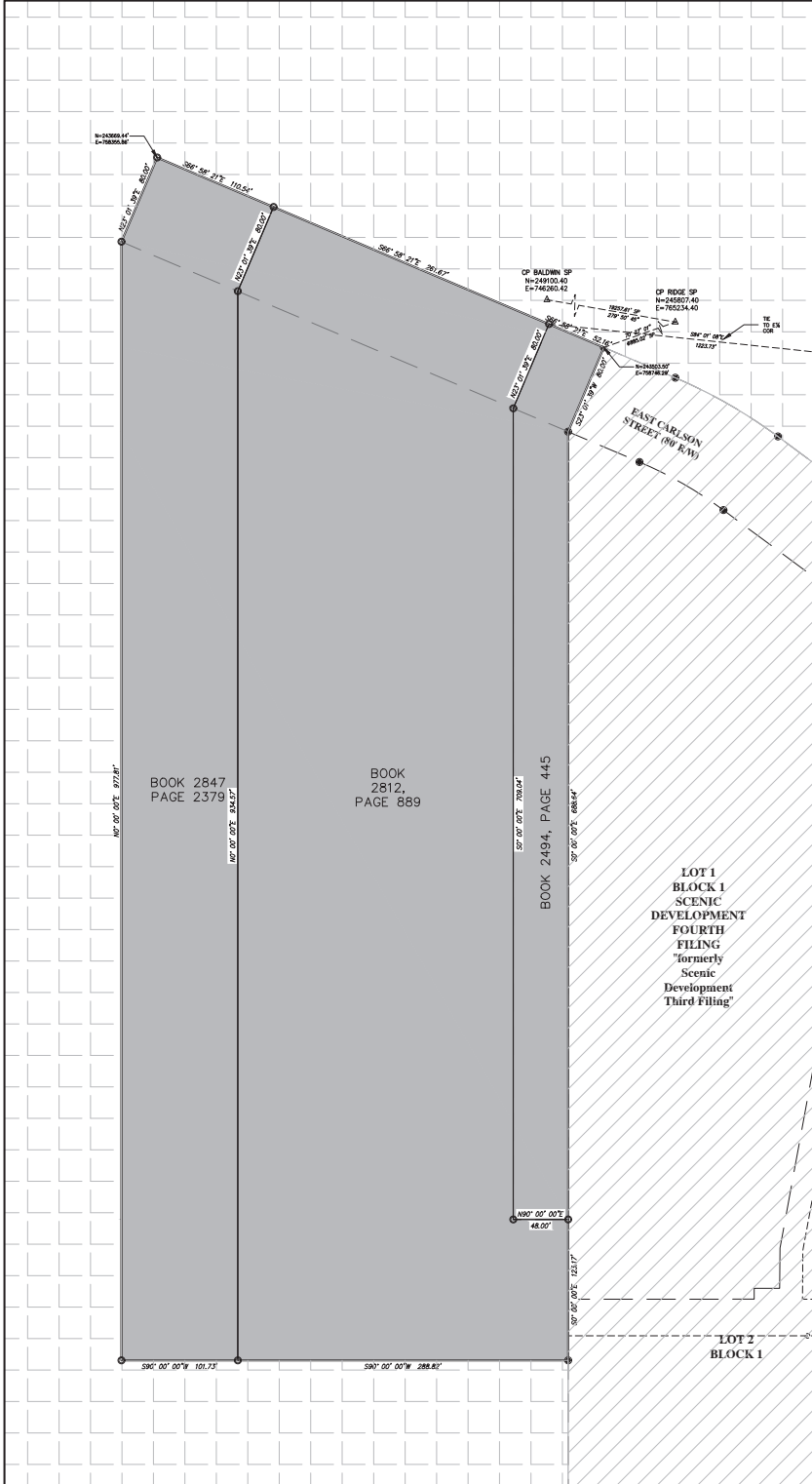
Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Kelly Hafner

Jun 10, 2024



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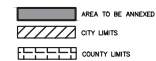
ANNEXATION DESCRIPTION

A PARCEL OF LAND SITUATED IN A PORTION OF SECTION 20, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE SIXTH PRINCIPAL MERIDIAN, SAID PARCEL BEING ALONG THE WEST BOUNDARY OF THE "SCENIC DEVELOPMENT THIRD FILING", A REPLAT OF LOTS 1-3, BLOCK 1 OF SCENIC DEVELOPMENT 2ND FILING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT A POINT WHERE THE SOUTHWEST RIGHT OF WAY OF CONVERSE AVENUE INTERSECTS THE WEST BOUNDARY OF "CENTURY WEST FIFTH FILING", SAID POINT BEING MONUMENTED BY A FOUND ALUMINUM CAP P.L.S. 2927, AND RUNNING THENCE, NORTH 54°59'22" WEST, A DISTANCE OF 1428.78 FEET TO A POINT ON THE NORTH RIGHT OF WAY LINE OF EAST CARLSON STREET MONUMENTED BY A 1-1/2" ALUMINUM CAP STAMPED AV 12045, AND THE POINT OF BEGINNING FOR THIS DESCRIPTION; THENCE, ALONG THE WESTERLY BOUNDARY OF SAID "SCENIC DEVELOPMENT THIRD FILING", THE FOLLOWING (2) COURSES: (1) THENCE S23°01'39"W A DISTANCE OF 80.00 FEET; (2) THENCE SOUTH A DISTANCE OF 688.64 FEET; THENCE WEST A DISTANCE OF 48.00 FEET; THENCE NORTH A DISTANCE OF 709.04 FEET; THENCE N23°01'39"E A DISTANCE OF 80.00 FEET; THENCE S66°58'21"E A DISTANCE OF 52.16 FEET TO THE POINT OF BEGINNING.

SAID PARCEL CONTAINS 0.866 ACRES, MORE OR LESS.

LEGEND



NOTES

1. BASIS OF BEARINGS:
CITY OF CHEYENNE CONTROL NETWORK, CP RIDGE AND EAST.
STATE PLANE VALUES SHOWN AS "SP"

APPROVALS

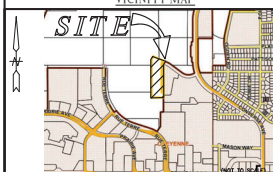
Approved by the City Council of the City of Cheyenne, Wyoming,
this ____ day of _____, 2023.

Mayer City Clerk

ANNEXATION AREA

TOTAL AREA: 8.80 ACRES
ABUTTING ANNEXATION AND RATIO TO TOTAL PERIMETER - 33%

VICINITY MAP



ANNEXATION EXHIBIT FOR

A PORTION OF THE EAST HALF OF SECTION 20, T14N, R66W, 6th P.M. LARAMIE COUNTY, WYOMING.

PREPARED June, 2024



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